

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1397

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO PUBLIC UTILITIES; AMENDING CHAPTER 1, TITLE 61, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 61-126, IDAHO CODE, TO DEFINE "WASTEWATER SYSTEM"; AMENDING CHAPTER 1, TITLE 61, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 61-127, IDAHO CODE, TO DEFINE "WASTEWATER SERVICE CONNECTION"; AMENDING CHAPTER 1, TITLE 61, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 61-128, IDAHO CODE, TO DEFINE "WASTEWATER CORPORATION"; AMENDING SECTION 61-129, IDAHO CODE, TO REVISE PROVISIONS REGARDING PUBLIC UTILITIES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 1, Title 61, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 61-126, Idaho Code, and to read as follows:

61-126. WASTEWATER SYSTEM. The term "wastewater system" when used in this chapter means any facility or system designed or used primarily for the collection, conveyance, storage, treatment, reuse, or disposal of wastewater or sewage, including pipelines, pump stations, treatment works, lagoons, and related components, that are owned, operated, or managed to provide wastewater services.

SECTION 2. That Chapter 1, Title 61, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 61-127, Idaho Code, and to read as follows:

61-127. WASTEWATER SERVICE CONNECTION. The term "wastewater service connection" when used in this chapter means each individual physical point of discharge where a customer's private sewage piping connects, or will connect, to a wastewater system, typically at the wastewater system's collection main.

SECTION 3. That Chapter 1, Title 61, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 61-128, Idaho Code, and to read as follows:

61-128. WASTEWATER CORPORATION. (1) The term "wastewater corporation" when used in this chapter includes every person and corporation, as those terms are defined in this chapter, including their lessees and designated agents, owning, controlling, operating, or managing any wastewater system for compensation within the state.

(2) A wastewater corporation serving a wastewater system with fewer than one hundred (100) wastewater service connections that are actively flowing or in which the customer pays a fee for standby, ready-to-serve, or

1 capacity reservation purposes shall not be considered a wastewater corpora-
2 tion and shall be exempt from regulation as a public utility.

3 (3) The public utilities commission may assess reasonable fees to a
4 wastewater corporation that is subject to its regulation. The fee shall not
5 exceed the reasonable costs incurred by the commission for the oversight and
6 regulation of the wastewater corporation.

7 SECTION 4. That Section 61-129, Idaho Code, be, and the same is hereby
8 amended to read as follows:

9 61-129. PUBLIC UTILITY. The term "public utility" when used in this
10 act includes every common carrier, pipeline corporation, gas corporation,
11 electrical corporation, telephone corporation ~~and~~, water corporation, and
12 wastewater corporation that has been classified as a public utility pursuant
13 to this chapter, as those terms are defined in this chapter and each thereof
14 is hereby declared to be a public utility and to be subject to the jurisdic-
15 tion, control and regulation of the commission and to the provisions of this
16 act. The term "public utility" as used in this act shall cover cases:

17 (1) Where the service is performed and the commodity delivered directly
18 to the public or some portion thereof, and where the service is performed or
19 the commodity delivered to any corporation or corporations, or any person or
20 persons, who in turn, either directly or indirectly or mediately or immedi-
21 ately, performs the services or delivers such commodity to or for the public
22 or some portion thereof; and

23 (2) Where a pipeline corporation delivers the commodity to any corpo-
24 ration, person, their lessees, receivers or trustees regardless of whether
25 it offers the pipeline service or commodity to the public or some portion
26 thereof. Such pipeline shall be subject to the safety supervision and reg-
27 ulation of the commission only, unless and until such pipeline corporation
28 makes application to the commission to be regulated generally as a public
29 utility.

30 SECTION 5. An emergency existing therefor, which emergency is hereby
31 declared to exist, this act shall be in full force and effect on and after
32 July 1, 2026.